Title 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 1832]

[Sacramento 053993]

CALIFORNIA

Adding Lands to the Shasta National Forest; Partially Revoking Executive Order No. 4203 of April 14, 1925

By virtue of the authority vested in the President by section 24 of the Act of March 3, 1891 (26 Stat. 1103; 16 U.S.C. 471), and the Act of June 4, 1897 (30 Stat. 34, 36; 16 U.S.C. 473), and pursuant to the Act of February 20, 1925 (43 Stat. 952), and Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Subject to valid existing rights, the following-described public lands in California are hereby added to and reserved as a part of the Shasta National Forest, and the boundaries of the said Forest are adjusted accordingly:

MOUNT DIABLO MERIDIAN

T. 41 N., R. 1 E.,
Sec. 24, SW¼SW¼.

The area described contains 40 acres.

Executive Order No. 4203 of April 14, 1925, so far as it withdrew the above-described land in aid of classification, is hereby revoked.

ROGER ERNST,
Assistant Secretary of the Interior.

APRIL 13, 1959.

[F.R. Doc. 59-3258; Filed, Apr. 17, 1959; 8:48 a.m.]

[Public Land Order 1833]

[81024]

ALASKA

Opening Lands Under Section 24 of the Federal Power Act; Projects 408, 2229, 2230; Power Classifications No. 221 and 427

1. In DA-69-Alaska, issued November 21, 1958, the Federal Power Commission vacated the withdrawal created by the filing on July 18, 1923, of an application for a license for Project No. 408, and as amended, on August 24, 1938, affecting the following-described lands:

All lands included within the definite project boundaries inclosing and surrounding the flume and pipe line, power house, dam, and overflowed area on Medvetcha River, about two and one-half miles east of Sitka, as shown on map designated as "Exhibit J" and entitled "Map Accompanying Application of the Sitka Wharf and Power Company for Amendment to License for Hydro-Electric Project No. 408 on the Medvetcha River, Baranof Island. Near Sitka—Territory of Alaska," and filed in the Office of the Federal Power Commission on August 24, 1938.

2. In DA-69-Alaska, the Commission determined that the value of the following-described lands reserved in Power Site Classifications Nos. 221 and 427, respectively, and those withdrawn pursuant to the filing of the applications for a preliminary permit on April 5, 1957, and for a license on January 2, 1958, respectively, for Project No. 2230, would not be injured or destroyed for purposes of power development by location, entry, or selection under the public land laws, subject to the provisions of section 24 of the Federal Power Act, as amended, and subject to the right of the licensee for Project No. 2230 and its successors to use the lands for purposes of power development as contemplated under the license for the project:

In Power Site Classification No. 221:

All lands below 350 feet in elevation which drain into Blue Lake, six miles east of Sitka, on Baranof Island; a strip of land 200 feet in width on each side of the center line of a tunnel and pipe line location, starting from a point on the shores of Salmon Cove, Silver Bay, which point is N. 62° E., 25 chains from Forest Service Monument located on the west shore of Salmon Cove, and running N. 10° E., approximately 90.00 chains to the south shore of Blue Lake, excluding, however, any lands within two miles of tidewater which are more than one-fourth of a mile from the stream to which they are adjacent.

In Power Site Classification No. 427:

Vicinity of latitude 57°04' N., longitude 135°12' W., six miles east of Sitka:

All lands between elevations 350 feet and 500 feet above sea level which drain into Blue Lake and Medvetcha River (Sawmill Creek) upstream from a point 250 feet downstream from the junction of the stream draining Herring Lake.

All lands below an altitude of 500 feet above sea level draining into Herring Lake and its outlet stream, and not reserved by Power Site Classification No. 221.

In Power Project No. 2230:

First Judicial Division, Baranof Island, Medvetcha River:

All lands lying adjacent to Blue Lake at an altitude of less than 365 feet above sea level as shown on a map designated "Exhibit J" (drawing 5715-01) entitled "City of Sitka, Blue Lake Hydro-Electric Project, General Map, Northeast Section", and filed in the Office of the Federal Power Commission on January 2, 1958.

All lands embracing the dam site, portal intake, tunnel, penstock, powerhouse and transmission line locations as delimited on map sheets designated "Exhibit K" (drawings 5715-03-1, 5715-05-1, 5806-1kk and 5806-2kk), entitled "Detail Map of Area"; subtitled "Upper Tunnel—Dam Site-Intake", "Powerhouse," "Penstock and Tunnel" and "Tunnel and Conduit" respectively, and filed in the Office of the Federal Power Commission on June 30, 1958.

3. In DA-69-Alaska, the Commission vacated the withdrawal created by the filing with it on September 17, 1956, of an application for preliminary permit by Alaska Lumber and Pulp Company, Inc., for Project No. 2229. The lands affected are generally the same as those described in paragraph 2 of this order for Project No. 2230.

4. The lands opened by this order aggregate approximately 2,000 acres, and are within the Tongass National Forest.

5. By virtue of the authority vested in the Secretary of the Interior by section 24 of the Act of June 10, 1920 (41 Stat. 1075; 16 U.S.C. 818) as amended, the lands are hereby opened, subject to valid existing rights and the requirements of applicable law, to such applications, selections, and locations as are permitted on national forest lands, effective at 10:00 a.m. on July 13, 1959, subject to the provisions of section 24 of the Act of June 10, 1920, supra, and to the rights of the licensee and its successors for Project No. 2230, recited in paragraph 2 of this order. Applications presented prior to the time specified will be considered as simultaneously filed at that hour. Applications filed thereafter will be considered in the order of filing.

6. Until 10:00 a.m. on July 13, 1959, the State of Alaska shall have:

(1) A preference right to select such of the lands as may be adjacent to established communities or suitable for prospective community centers and recreational areas, in accordance with the provisions of section 6(a) of the Alaska Statehood Act of July 7, 1958 (72 Stat. 339), and the lands shall be subject

(2) To application for the reservation to the State of Alaska, or any political subdivision thereof, under any statute or regulation applicable thereto, of any lands required as a right-of-way for a public highway or as a source of materials for the construction and maintenance of such highways pursuant to section 24 of the Federal Power Act of June 10, 1920, supra.

ROGER ERNST,
Assistant Secretary of the Interior.

APRIL 14, 1959.

[F.R. Doc. 59-3259; Filed, Apr. 17, 1959; 8:48 a.m.]

Title 46—SHIPPING

Chapter I—Coast Guard, Department of the Treasury

SUBCHAPTER B—MERCHANT MARINE OFFICERS AND SEAMEN

[CGFR 59-6]

PART 10—LICENSING OF OFFICERS AND MOTOR BOAT OPERATORS AND REGISTRATION OF STAFF OFFICERS

Subpart 10.10—Professional Requirements for Engineer Officers' Licenses (Inspected Vessels)

SERVICE REQUIREMENTS FOR ORIGINAL LICENSES AS FIRST ASSISTANT ENGINEER OF STEAM OR MOTOR VESSELS OF NOT MORE THAN 1,000 HORSEPOWER

The service requirements for applicants for original licenses as first assistant engineer of steam or motor vessels of limited horsepower were revised in 1957 in accordance with recommendations of the Merchant Marine Council, which were based on Item III of an Agenda considered at a public hearing held May 7, 1957. The amendments to 46 CFR 10.10-13(a)(4) and 10.10-15(a)(4) published July 25, 1957 (22 F.R. 5894), limited the use of service as oiler, watertender or fireman as experience to qualify for only an original license as first assistant engineer of steam or motor towing or ferry vessels of not more than 2,000 horsepower. Since then the Com-